

Andhra Pradesh Government Lands And Buildings (Termination Of Leases) Rules, 1986

Source: <https://indiankanoon.org/doc/96917117/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

[, Cited by](#)

0

]

[State of Andhra Pradesh - Act](#)

[Andhra Pradesh Government Lands And Buildings \(Termination Of Leases\) Rules, 1986](#)

[ANDHRA PRADESH](#)

[India](#)

[Andhra Pradesh Government Lands And Buildings \(Termination Of Leases\) Rules, 1986](#)

Rule [ANDHRA-PRADESH-GOVERNMENT-LANDS-AND-BUILDINGS-TERMINATION-OF-LEASES-RULES-1986](#) of 1986

Published on 18 August 1986

Commenced on 18 August 1986

[This is the version of this document from 18 August 1986.]

[Note: The original publication document is not available and this content could not be verified.]

[Andhra Pradesh Government Lands And Buildings \(Termination Of Leases\) Rules, 1986](#)

Published vide in A.P. Gazette, R.S. to Part 1 (Extraordinary) dated 19-8-1986.(G.O.Ms.No.384, Transport, Roads and Buildings (Buildings 2), 18th August, 1986)

In exercise of the powers conferred by sub section (1) of Section 12 of the Andhra Pradesh Government Lands, and Buildings (Termination of Leases) Act, 1986 (Andhra Pradesh Act 18 of 1986), the Governor of Andhra Pradesh hereby makes the following rules:

1.

Short title:.

- These rules may be called the Andhra Pradesh Government Lands and Buildings (Termination of Leases) Rules, 1986.

2.

Definitions:.

- In these rules, unless the context otherwise requires,

(a)

"Act" means the Andhra Pradesh Government Lands and Buildings (Termination of Leases) Act, 1986;

(b)

"Form" means a Form appended to these rules;

(c)

"rent" in relation to any demised premises, land or building, means the consideration payable periodically for the authorised occupation of the premises and includes,

(i)

any charges for electricity, water or any other services in connection with the occupation of the premises;

(ii)

any tax (by whatever name called) payable in respect of the premises, where such charges or tax is payable by the Government; and

(iii)

Mandal Revenue Officer means an Officer appointed as such by Government to be the officer-in-charge of any Revenue Mandal in the State.

3.

Form of the Notice under Section 3 of the Act:.

- A notice under Section 3 shall be in the Form With such modifications as may be considered necessary. [The period of notice under this rule shall not be less than 30 clear days.]

[Added by G.O. Ms. No. 480, dated 11-11-1986.]

4.

Manner of Service of Notice:.

(1)

Where a notice is required [under Section 3]

[Substituted by Ibid.]

to be served on a person whose address is known, it shall be served on him personally or through registered post, acknowledgement due and when he could not be so served by reason of his absence at the address or of his evading such service, the notice shall be caused to be affixed on a conspicuous part of the building or a last known place of business or occupation of such person and a certificate to this effect shall be taken from any adult member available at that place at the time of affixture, and the certificate shall constitute evidence of the notice having been served on the lessee.

(2)

The Government shall also cause a proclamation by beat of drum to be made of the contents of any notice [under sub section (3) of Section 4]

[Substituted by G.O. Ms. No. 480 dated, 11-11-1986.]

in the locality.

5.

Lessee to vacate premises on service of Notice:.

- Where a notice Section 3 is served on a lessee, he shall vacate the premises or land within one hundred and eighty days and deliver possession thereof as required by Sections 3 of the Act.

6.

Manner of taking possession of public premises:.

(1)

If after, the expiry of the period specified in rule 5, the lessee fails to vacate the premises, the Estate Officer/Mandal Revenue Officer, as the case may be, shall serve an order of eviction under Section 5(1) of the Act in Form B calling upon the person or persons concerned to hand over the said premises within the time specified therein, which shall not exceed thirty days.

(2)

Where a building is forced open and an inventory of the articles is prepared under sub-section (3) of Section 5, the articles so taken possession of shall be kept in a separate room duly locked and sealed. A notice in Form C shall be given to the person/persons of the above action directing them to take charge of the articles within three months of the service of notice.

(3)

In case the person/persons concerned approach the Estate Officer/Mandal Revenue Officer within three months, the articles so taken possession of shall be handed over, after the rent for the portion or portions where such articles are stored is collected as fixed by the Executive Engineer, (Roads and Buildings) concerned.

(4)

If the articles taken possession of under sub-rule (2) are not claimed within a period of three months, the Estate Officer/Mandal Revenue Officer may dispose of the articles through public auction, after giving due publicity in a leading News Paper having circulation in that town or city and one local newspaper.

(5)

The amount so realised shall be credited to the relevant account or the State Government after deducting all the expenditure, incurred for storage, publicity, auctioning etc.

7.

Compensation payable:.

- The solatium payable under Section 6 shall be paid to the lessee by the Government through a cheque within a month from the date of taking possession of the premises, after deducting the expenditure, if any, incurred for evicting the lessee and any amount due to the Government by way of arrears of rent.

Form-A

(Notice for termination of Lease under Section 3 of the Act)

Notice

From

Secretary to Government,

.....Department,

Andhra Pradesh, Hyderabad

No.....Date.....

To

Sri./Smt./M/s.....

.....

The Government premises bearing No.....called.....situated at.....is leased to you/your organisation on an Annual/Monthly rent of Rs.....for a period of....month/months year with effect from.....to.....The lease according to original allotment made under.....expires by.....

The above premises are required by Government for a public purpose. Hence, the lease for the balance period of.....with effect from.....to.....is hereby terminated under Section 3 of Andhra Pradesh Government Lands and Buildings (Termination of Leases) Act, 1986 (Act No.18 of 1986).

You are accordingly directed to vacate the premises on or before.....and handover the possession of the premises to the.....

In case you fail to vacate the premises by.....further action will be initiated against you/your/firm/Association as per Section 5 of the Act.

Yours faithfully,

Copy to Estate Officer/Mandal Revenue Officer.....for information. He is directed to proceed against the above party/parties if he/ they fail to vacate the premises and hand over to the.....by.....without any further instructions from the Government.

Copy to...for information, with a direction to report to Government/Estate Officer/Mandal Revenue Officer the exact position as on.....for taking further action.

Copy to the Chief Engineer (Buildings), Andhra Pradesh, Hyderabad,

Form B

(Order for eviction from demised premises under Section 5 of the Act)

Eviction Notice

From

.....

Estate Officer/Mandal Revenue Officer,

.....Notice No....Date....

.....

To

Sri/Smt./M/Section.....

.....

Ref: Government Notice No.....

Dated.....

The Public Premises bearing.....situated at.....is on lease with you from.....to.....and the lease period expires by....Government vide reference cited terminated the lease under Section 3 of Andhra Pradesh Government Lands and Buildings (Termination of Leases) Act, 1986 but you have failed to vacate the premises within the period specified in the said notice.

Now, therefore, in exercise of the powers conferred by Section 5(1) of the Andhra Pradesh Government Lands and Buildings (Termination of Leases) Act, 1986, I hereby direct your eviction from the premises within.....days from the date of receipt of this notice and direct you to hand over the premises to.....and report on or before.....failing which, action will be initiated against you under Section 5(2) of the Act.

Estate Officer/Mandal Revenue Officer.

Form C

(For removal of articles from demised premises under Section 5(3) of the Act)

Date:

From

.....

Estate Officer/Mandal Revenue Officer.....

.....

To

.....

Sri/Smt./M/s

.....

.....

Ref : 1. Government Notice.....Date.....

2. Estate Officer/Mandal Revenue Officer

Notice.....Dated

Since you have failed to vacate the premises by....ordered in the notice 2nd cited and the premises was found locked, action under Section 5(3) of the Andhra Pradesh Government Lands and Buildings (Termination of Leases) Act, 1986 was taken and the lock of the door was broken open and all the articles in the premises are listed and kept at.....

I hereby given notice to contact the undersigned and take possession of all the articles within three months, failing which the articles will be auctioned and the amount realised will be credited to Government Account as per Rule 6(5) of the Andhra Pradesh Government Lands and Buildings (Termination of Lease) Rules,1986.

Estate Officer/Mandal Revenue Officer.

Related AI tags, queries and research notes

Translation